



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: UDC-17-00623 – Enhanced Use Lease, Annexation
Date: June 28, 2021

Background:

The item for consideration is an *Annexation*. This is approved by ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral June 28, 2021
- Public Services Committee: July 7, 2021
- Second Reading: July 12, 2021
- Public Services Committee: July 20, 2021
- Third and Final Reading: July 25, 2021

This proposed City-initiated annexation is for approximately 75 acres of land southwest of the I-25 and Missile Drive interchange. A portion of these 75 acres historically has been utilized for parking during Cheyenne Frontier Days. This land has been designated by F. E. Warren Air Force Base as the “Enhanced Use Lease” (EUL) area. The enhanced use Lease program is intended to allow revenue generating special projects for the base by utilizing public/private partnerships.

This City-initiated annexation will not require an owner’s signature. To initiate an annexation, the City must adopt a Resolution certifying that the annexation complies with Wyoming State Statute 15-1-402. After the City adopts this Resolution, the annexation follows the typical schedule, including a public hearing and the approval of an Ordinance which annexes the land. This resolution was adopted by the Governing Body on December 19, 2019.

As with any annexation, City services will be extended to service the land contained in the annexation. City water mains are already located in the vicinity. Sewer mains will need to be extended to the property. Police, fire, and sanitation services will be coordinated with F. E. Warren Air Force Base. As the land contained in this annexation is vacant, infrastructure improvements required related to the annexation are minimal. Future development on the site will require on- and off-site infrastructure improvements.

The future land use map of PlanCheyenne designates the area as Military/Federal within the Urban Service Boundary. While the plan is silent on recommended uses or development patterns for the Military/Federal designation, land within the Urban Service Boundary is expected to develop with urban uses and served by urban services.

The proposed annexation is adjacent to land under City jurisdiction. Development in this area is a natural extension of the City. Approximately 18.2 % of the perimeter of the annexation area is contiguous to City Limits. Staff notes the purpose of annexation, adjacent highway and railroad rights-of-way are excluded.

Due to meeting the review criteria found in Wyoming Statute 15-1-402, staff recommends approval of this annexation.

The Planning Commission considered establishment of Support Services (SS) District at their June 21, 2021 meeting and recommended the Governing Body establish SS District zoning for the area. The related zoning ordinance is a companion item on this agenda.

Location Map:



Staff Recommendation:

Staff recommends the Governing Body approve the Annexation Ordinance.

Attachments:

1. Ordinance

ORDINANCE NO. _____

ENTITLED: "ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF THE S½ OF SECTION 35, AND A PORTION OF THE SW¼ OF SECTION 36, T14N, R67W, LARAMIE COUNTY, WYOMING GENERALLY LOCATED SOUTHWEST OF INTERSTATE 25 AND HAPPY JACK ROAD"

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That the City of Cheyenne has initiated this annexation in compliance with Wyoming Statute § 15-1-404, and has adopted a Resolution certifying that the area to be annexed complies with the requirements of Wyoming Statute § 15-1-402 (said resolution being adopted on December 19, 2019, as Resolution #6030); and
- (b) That an accurate legal description of said land is as follows:

A tract of land situated in a portion of F.E. Warren AFB Military Reservation located south of Happy Jack Road, also lying in a portion of Protracted Sections 35 and 36, Township 14 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the southeasterly corner of said F.E. Warren AFB Military Reservation, from which the north quarter corner of Section 1, Township 13 North, Range 67 West, bears S.74°15'13"E. (when considering the north line of the NW¼ of said Section 1 has a bearing of N.89°57'36"W.), a distance of 1239.86 feet; thence N.78°35'41"W., a distance of 1297.38 feet; thence N.35°59'10"W., a distance of 937.39 feet; thence S.16°04'22"W., a distance of 1019.91 feet; thence S.82°06'12"W., a distance of 2152.23 feet to the southerly right-of-way line of Happy Jack Road; thence northeasterly along said southerly right-of-way line, a distance of 168.94 feet along a curve concave to the northwest, having a radius of 2009.86 feet and a central angle of 04°48'57" (chord bearing of N.62°46'52"E., chord distance of 168.89 feet); thence N.60°22'24"E., along said southerly right-of-way line, a distance of 3833.62 feet; thence northeasterly along said southerly right-of-way line, a distance of 296.87 feet along a curve concave to the southeast, having a radius of 1045.92 feet and a central angle of 16°15'46" (chord bearing of N.68°30'17"E., chord distance of 295.88 feet) to the westerly right-of-way line of Interstate 25; thence S.26°00'04"E., along said westerly right-of-way line, a distance of 1432.53 feet; thence S.15°38'47"W., along said westerly right-of-way line, a distance of 553.07 feet to the point of beginning; containing 75.277 acres more or less; and

- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is considered contiguous to the City of Cheyenne according to the provisions of Wyoming Statute § 15-1-402 (b) and is currently zoned X Exempt by the Laramie County Commissioners; and

- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to Wyoming Statute § 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Section 1(b) of this Ordinance is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That pursuant to Wyoming Statute § 15-1-405, the Governing Body held a public hearing on February 10, 2020, on the proposed and annexation and found that the annexation complied Wyoming Statute § 15-1-402.

Section 4. That the map of the area to be annexed is shown in Attachment A, which is attached hereto and incorporated herein, satisfies the requirements of Wyoming Statute § 15-1-406 and shall be recorded with the county clerk in conjunction with this ordinance.

Section 5. That the City Clerk is directed to file an executed copy of this annexation ordinance with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 7. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

published: _____

CURVE TABLE

NUMBER	DELTA ANGLE	CHORD DIRECTION	TANGENT	RADIUS	ARC LENGTH	CHORD LENGTH
C1	04°48'57"	N.62°46'52"E.	84.52	2009.86	168.94	168.89
C2	16°15'46"	N.68°30'17"E.	149.44	1045.92	296.87	295.88

F.E WARREN
AIR FORCE BASE

75.277 ACRES

LEGEND

- SET 3/8" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- FOUND 3/4" X 30" TRIPLE FLUTTED ROD WITH 3/4" DOMED MAGNETIC ALUMINUM CAP MARKED "F.E. WARREN AFB BOUNDARY WYO P.L.S. 2927"
- FOUND STANDARD W.D.O.T. R/W MONUMENT
- ⊙ FOUND 6" X 6" CONCRETE MONUMENT WITH NAIL IN CENTER, 1' BELOW GROUND, MARKED USMR ON NE AND SW FACES AND 2 ON NW FACE.
- FOUND G.L.O. STONE
- FOUND 2" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- ⊙ FOUND WYDOT REFERENCE MONUMENT A 3 1/2" BRASS CAP IN CONCRETE
- EXISTING WIRE FENCE

CERTIFICATE OF SURVEYOR

I, John A. Stiel, Registered Professional Land Surveyor in the State of Wyoming, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



RECORD OF SURVEY
FOR
F.E. WARREN AFB
MILITARY RESERVATION
(SOUTH FORTY)

A TRACT OF LAND
SITUATED IN A PORTION OF
F.E. WARREN AFB, MILITARY RESERVATION
LOCATED SOUTH OF HAPPY JACK ROAD
ALSO LYING IN A PORTION OF PROTRACTED
SECTIONS 35 & 36, TOWNSHIP 14 NORTH,
RANGE 67 WEST OF THE 6TH P.M.
LARAMIE COUNTY, WYOMING.

PREPARED JUNE, 2010



STIEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 WEST 19th STREET P.O. BOX 2073
PH(307)634-7273 CHEYENNE, WY. 82003

LAND DESCRIPTION

A tract of land situated in a portion of F.E. Warren AFB Military Reservation located south of Happy Jack Road, also lying in a portion of Protracted Sections 35 and 36, Township 14 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the southeasterly corner of said F.E. Warren AFB Military Reservation, from which the north quarter corner of Section 1, Township 13 North, Range 67 West bears S.74°15'13"E (when considering the north line of the NW 1/4 of said Section 1 has a bearing of N.89°57'36"W.), a distance of 1239.86 feet; thence N.78°35'41"W., a distance of 1297.38 feet; thence N.35°59'10"W., a distance of 937.39 feet; thence S.16°04'22"W., a distance of 1019.91 feet; thence S.82°06'12"W., a distance of 2152.23 feet to the southerly right-of-way line of Happy Jack Road; thence northeasterly along said southerly right-of-way line, a distance of 168.94 feet along a curve concave to the northwest, having a radius of 2009.86 feet and a central angle of 04°48'57" (chord bearing of N.62°46'52"E., chord distance of 168.89 feet); thence N.60°22'24"E., along said southerly right-of-way line, a distance of 3833.62 feet; thence northeasterly along said southerly right-of-way line, a distance of 296.87 feet along a curve concave to the southeast, having a radius of 1045.92 feet and a central angle of 16°15'46" (chord bearing of N.68°30'17"E., chord distance of 295.88 feet to the westerly right-of-way line of Interstate 25; thence S.26°00'04"E., along said westerly right-of-way line, a distance of 1432.53 feet; thence S.15°38'47"W., along said westerly right-of-way line, a distance of 553.07 feet to the point of beginning. Containing 75.277 acres more or less.

Attachment A

DETAIL

SCALE: 1"=50'

